

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 19, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV409948	Stephen Lee v. Citibank, N.A.	Click LINE 1 or scroll down for ruling.
Line 2	24CV440131	Jose Manuel Ruelas v. Alikssa Adilene Flores et al.	Defendant and cross-complainant Innovation Outdoor Improvement, Inc.'s motion to compel initial responses to form interrogatories and requests for production, against cross-defendants Aritzy Jacqueline Lara Martinez, El Borracho Sports Bar & Grill, and Grasshopper Builders, Inc. Notice is proper. Court default was entered against all cross-defendants in December 2025 after they failed to answer the cross-complaint by the deadline set by the court's July 2025 order vacating earlier court defaults. "The entry of a default cuts off the right to file pleadings and motions, and the right to notices and the service of pleadings." (<i>Steven M. Garber & Associates v. Eskandarian</i> (2007) 150 Cal.App.4th 813, 823.) Cross-defendants have not moved to set aside default. The court therefore has not considered their opposition (or the unauthorized supplemental declaration) to the instant discovery motion. Cross-defendants have not responded to either discovery request. The motion is GRANTED. (Code Civ. Proc., §§ 2030.290, 2031.300.) Cross-defendants Aritzy Jacqueline Lara Martinez, El Borracho Sports Bar & Grill, and Grasshopper Builders, Inc., are ordered to serve code-compliant, objection-free responses to the requested discovery no later than June 23, 2026. The court awards sanctions jointly and severally against cross-defendants Aritzy Jacqueline Lara Martinez, El Borracho Sports Bar & Grill, and Grasshopper Builders, Inc., in the amount of \$765 (consisting of the \$65 motion filing fee, \$600 in attorney fees (two hours at \$300/hour), and \$100 in paralegal time (one hour at \$100/hour)). The court will prepare the order.